

EXHIBIT INDEX

Case No.: CGC-25-631801

Superior Court of California, County of San Francisco

Exhibits in support of: Oppositions to Demurrer and Anti-SLAPP

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Native audio, video, and CAD (Exhibits 1-3): access at
<https://shorturl.at/vC1nm>

EXHIBIT 1

911 Audio Recording

Case No.: CGC-25-631801

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: Native Media

LISTEN / WATCH DIGITAL EVIDENCE

ACCESS URL (native audio / video / CAD):

<https://shorturl.at/vC1nm>

Native audio, video, and CAD materials are available at <https://shorturl.at/vC1nm>. They are also identified in the declaration and exhibit index; those materials may be produced on request or lodged under seal per court procedure.

Exhibit: 911 Audio Recording

Non-PDF native media (audio / video / CAD or similar). Use the declaration and exhibit index for identifiers and production.

Served concurrently with this filing.

EXHIBIT 2

Body-Worn Camera Footage

Case No.: CGC-25-631801

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: Native Media

LISTEN / WATCH DIGITAL EVIDENCE

ACCESS URL (native audio / video / CAD):

<https://shorturl.at/vC1nm>

Native audio, video, and CAD materials are available at <https://shorturl.at/vC1nm>. They are also identified in the declaration and exhibit index; those materials may be produced on request or lodged under seal per court procedure.

Exhibit: Body-Worn Camera Footage

Non-PDF native media (audio / video / CAD or similar). Use the declaration and exhibit index for identifiers and production.

Served concurrently with this filing.

EXHIBIT 3

CAD Logs

Case No.: CGC-25-631801

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: SFPD

LISTEN / WATCH DIGITAL EVIDENCE

ACCESS URL (native audio / video / CAD):

<https://shorturl.at/vC1nm>

Native audio, video, and CAD materials are available at <https://shorturl.at/vC1nm>. They are also identified in the declaration and exhibit index; those materials may be produced on request or lodged under seal per court procedure.

Exhibit: CAD Logs

Non-PDF native media (audio / video / CAD or similar). Use the declaration and exhibit index for identifiers and production.

Served concurrently with this filing.

EXHIBIT 4

SFPD Report

Case No.: CGC-25-631801

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: SFPD



**THE DOLAN LAW FIRM
1438 MARKET STREET
SAN FRANCISCO, CA 94102
ATTN: CHRISTOPHER B. DOLAN**

**CASE NAME: FRANCISCUS DYLAN ROSARIO v SUBHI ABDELHALIM INDIVIDUALLY, AND
 DBA SONOMA LIQUOR**

FILE NO: 1004-09-1054

COMPEX LEGAL SERVICES
325 MAPLE AVENUE, TORRANCE, CALIFORNIA, 90503
855-279-2396

RECORD REQUEST FORM

Compex Order: CA1147102

CHRISTOPHER B. DOLAN
THE DOLAN LAW FIRM
1438 MARKET STREET
SAN FRANCISCO, CA 94102

01/31/2024

RE: FRANCISCUS DYLAN ROSARIO V. SUBHI ABDELHALIM INDIVIDUALLY, AND DBA SONOMA LIQUOR
Case No.: CGC-21-594102
Record Subject: FRANCISCUS DYLAN ROSARIO
Records requested by: PHILLIPS, SPALLAS & ANGSTADT LLP

DEAR CHRISTOPHER B. DOLAN:

Compex Legal Services has been requested by the firm named above to obtain records from the locations listed below.

If you require copies of any of these records, please indicate by checking the box next to the appropriate location(s) and sign and return the form to Compex Legal Services. If no boxes are checked, we will produce copies for all locations.

Please note:

Checking the box next to a location indicates that you would like to receive a copy of the records obtained by Compex Legal Services.

Should you wish to order any additional services such as summaries or record reorganization, please indicate in the provided fields below. If you check "Films" and/or "Other", these occasionally include copies of original items such as photos, blueprints, video, or audio tapes, so this order must be submitted within (2) business days of receipt of this notice to assure proper delivery.

Please select preferred mode of delivery:

☐ **Electronic** ☐ **CD** *If nothing is checked, records will be posted electronically to our web portal

Records Films Other
 (If requested)

☐ ☐ ☐ CA1147102-021 - SAN FRANCISCO POLICE DEPARTMENT (LEGAL DIVISION)

☐ Furthermore, on behalf of the consumer, and in accordance with CCP 2020(d)(4), I stipulate to an early release of all documents and items listed above, from all locations listed herein, waiving all time for statutory holds. The documents and other items may be copied and released prior to the deposition date listed on the subpoena(s).

Medical Record Summarization

Check only one:

- ☐ Full Summary includes:
1. Chronological Record Reorganization with Visit Index
 2. Medical Records Summary
 3. Billing Summary
- ☐ Medical Summary includes:
1. Chronological Record Reorganization with Visit Index
 2. Medical Records Summary
- ☐ Basic Reorganization includes:
1. Chronological Record Reorganization with Visit Index

Additional Summary Instructions

All locations will be summarized, unless otherwise specified

- ☐ Medical locations only
- ☐ Billing locations only
- ☐ Medical and Billing locations
- ☐ OCR records
- ☐ If additional records are received after a summary is produced, the supplemental summary can be merged with the original for \$25 per merge.

Summary Delivery Instructions

- ☐ Electronic copy delivered to my Compex account
- ☐ CD

If your firm has an account with Compex Legal Services, normal billing will apply. If you represent an insurance carrier and prefer that we bill them directly, please provide the following information:

Carrier _____ Adjuster _____
Address _____ Phone _____
City, St _____ Zip _____
Claim _____ Insured _____

Your signature below confirms that you are ordering these items and agree to the terms and conditions (attached)

Authorized Signature _____ Date _____
(Required)
Print Name _____ Title _____
E-mail _____ Phone _____ Fax _____
(Mandatory field if Electronic records are being requested)

COMPEX STANDARD TERMS AND CONDITIONS

The following Standard Terms and Conditions are an integral part of your contract with COMPEX. These terms are in addition to the terms provided to you as part of your sales proposal. If any terms of any sales proposal provided to you by COMPEX conflicts with any term stated here, then the terms stated herein shall control except to the extent that the proposal specifically states that it takes precedence over these Standard Terms and Conditions.

Instructions. You are responsible for clearly instructing COMPEX as to exactly what work COMPEX is to perform for you. This is the only way COMPEX can ensure that its production staff understands your needs and can deliver a high-quality work product. Your designated COMPEX representative will then provide you with a detailed, clear and precise written description of the work to be performed by COMPEX. However, if they fail to do so, it is solely your responsibility to demand one from them. In the alternative, you may choose to write and deliver such a written description to COMPEX before COMPEX begins work on your project. You agree to be responsible for any ambiguity in the instruction that COMPEX follows in completing your work and for reaching out to secure log in credentials to our web portal in order to access records delivered electronically if that is your requested delivery mode.

Change Orders. If after COMPEX begins work on your project, you decide you want the work done differently than as specified in the original instructions then you shall be solely responsible for providing revised instructions to COMPEX. If COMPEX incurs costs in conjunction with following any revised instructions, whether through re-work, abandoned work, or additional work, then you shall pay an additional charge consistent with the new work and with the original contract pricing. Your obligations regarding written instructions, as described in the instructions paragraph above, shall apply to all change orders.

Production of Records. COMPEX cannot guarantee the custodian of records will make the records available. If the records are made available, COMPEX will use its best efforts to assure their production within 5 working days. If the records have already been produced, COMPEX may require as long as 10 working days to retrieve and produce a duplicate set from its archives. You will receive an exact copy of the response provided by the location, even if a Certificate of No Records is provided.

Payment. Unless otherwise agreed in writing, the fees described will apply to each location requested. You will pay COMPEX \$58.00 plus \$17.50 shipping/handling for each record location ordered. In addition, for each location ordered, you will pay \$0.40 for each and every page we obtain and reproduce (paper, CD and/or electronic) and \$12.50 for each CD of material or document ordered. These charges apply regardless of the number of pages reproduced, and to locations where there are no records. Payment is due for goods and services no later than ten days following the invoice date. COMPEX may, at its discretion, require prepayment up front, or on delivery. If your order is received later than 2 weeks from the original order date, a \$15.00 late processing fee will be applied to each location that is produced.

Pricing and Payment terms for original items duplicated. Unless otherwise agreed in writing, you will pay COMPEX \$58.00 plus \$17.50 shipping/handling for each and every record location listed above. In addition, you will pay \$15.00 for each x-ray, CT scan, MRI; \$2.00 for each photograph; \$12.50 per CD; \$2.00 per square foot for blueprints we obtain and reproduce. These charges apply regardless of the number of items reproduced, and for locations where there are no records. Payment is due for goods and services no later than ten days following invoice date. COMPEX may, at its own discretion, require payment up front, or on delivery.

Late Charges. The price agreed by COMPEX for your work was agreed only with the understanding that it would be paid within the time allowed under paragraph 3 above. Thereafter, beginning on the 30th day following the invoice date, a 1.5% per calendar month price premium applies and the total amount due shall be compounded monthly at this rate.

Arbitration. You and COMPEX agree that any controversy or claim arising out of or related to this contract, or the breach thereof, shall be decided by binding arbitration that is subject to the Federal Arbitration Act and that shall be administered by the American Arbitration Association under its applicable rules (provided that, if, for any reason, the AAA is unable to administer the arbitration, JAMS shall do so). Any such arbitration must be brought exclusively in Los Angeles County, State of California. You and COMPEX each waive the right to proceed in court, the right to a jury trial, and the right to appeal. You agree that your claim shall be heard and decided individually. You shall have no right or authority to have any claims arbitrated on a class action basis (as a class member, class representative, or otherwise), nor shall your claim be joined with other claims.

Exclusion of Certain Types of Damages. You and COMPEX agree that, except as may be otherwise provided under applicable laws, neither party shall be liable to the other for any indirect, incidental, consequential, special, punitive, or exemplary damages.

Limitations of Liability. Your recovery on any claim shall be limited to the dollar value of this contract.

Attorney's Fees. In any dispute between you and COMPEX arising from your contract with COMPEX, the prevailing party shall be entitled to recover reasonable attorney's fees, reasonably incurred costs, and reasonably incurred expert fees, except to the extent prohibited by applicable law or the applicable arbitration rules.

Waiver. If, at any time, COMPEX's services do not conform to your expectations, you must notify COMPEX in writing within a reasonable time, not to exceed 30 days, stating precisely the nature of your complaint. Your failure for any reason whatsoever to provide such written notice shall constitute a waiver of any and all claims based on such non-conformity, and no evidence of such non-conformity shall be admissible in any legal proceeding unless first offered by COMPEX.

Disclaimer of Warranty. COMPEX disclaims all implied warranties including, without limitation, but not limited to, the implied warranties of merchantability and fitness for a particular purpose, and all express warranties except those explicitly made in these Standard Terms and Conditions. Certain state laws may not allow limitations on implied warranties. If these laws apply to you, some or all of the above disclaimers may not apply to you, and you might have additional rights.

Governing Law. This contract shall be governed and construed in accordance with the laws of the State of California, without regard to its conflicts of law provisions. You agree to waive any and all objections that you may have to California law as the governing law and to the sole and exclusive venue being Los Angeles County, California.

Miscellaneous. Fax and emailed signatures shall have the effect of original signatures. This contract may be executed in counter-parts. These Standard Terms and Conditions form an essential but not a complete statement of the contract between you and COMPEX.

Note: Page numbers printed on embedded PDF images reflect the source filings. Citations in this filing use reporter, transcript, and clerk pagination for the master packet.

EXHIBIT 5

Compex Subpoena

Case No.: CGC-25-631801

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: Compex

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): ALBERTO REYNA (BAR#: 347323) PHILLIPS, SPALLAS & ANGSTADT LLP 560 MISSION STREET, SUITE 1010 SAN FRANCISCO, CA 94105 TELEPHONE NO.: 415-278-9400 FAX NO.: 415-278-9411 E-MAIL ADDRESS: areyna@psalaw.net ATTORNEY FOR (Name): SUBHI ABDELHALIM INDIVIDUALLY, AND DBA SONOMA LIQUOR	FOR COURT USE ONLY
SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO STREET ADDRESS: 400 MCALLISTER ST MAILING ADDRESS: CITY AND ZIP CODE: SAN FRANCISCO, 94102 BRANCH NAME: SAN FRANCISCO SUPERIOR	
PLAINTIFF/PETITIONER: FRANCISCUS DYLAN ROSARIO DEFENDANT/RESPONDENT: SUBHI ABDELHALIM INDIVIDUALLY, AND DBA SONOMA LIQUOR	
DEPOSITION SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS	CASE NUMBER: CGC-21-594102

THE PEOPLE OF THE STATE OF CALIFORNIA, TO (name, address, and telephone number of deponent, if known):

CUSTODIAN OF RECORDS: **SAN FRANCISCO POLICE DEPARTMENT (LEGAL DIVISION)**
850 BRYANT STREET, SUITE 511, SAN FRANCISCO, CA 94103

1. YOU ARE ORDERED TO PRODUCE THE BUSINESS RECORDS described in item 3, as follows:

To (name of deposition officer): **COMPEX LEGAL SERVICES**

On (date): **02/26/2024**

At (time): **09:00 A.M.**

Location (address): **325 MAPLE AVENUE, TORRANCE, CALIFORNIA, 90503**

Do not release the requested records to the deposition officer prior to the date and time stated above.

- a. ☐ by delivering a true, legible, and durable copy of the business records described in item 3, enclosed in a sealed inner wrapper with the title and number of the action, name of witness, and date of subpoena clearly written on it. The inner wrapper shall then be enclosed in an outer envelope or wrapper, sealed and mailed to the deposition officer at the address in item 1.
 - b. ☐ by delivered a true, legible, and durable copy of the business records described in item 3 to the deposition officer at the witness's address, on receipt of payment in cash or by check of the reasonable costs of preparing the copy, as determined under Evidence Code section 1563(b).
 - c. ☒ by making the original business records described in item 3 available for inspection at your business address by the attorney's representative and permitting copying at your business address under reasonable conditions during normal business hours.
2. The records are to be produced by the date and time shown in item 1 (but not sooner than 20 days after the issuance of the deposition subpoena, or 15 days after service, whichever date is later). Reasonable costs of locating records, making them available or copying them, and postage, if any, are recoverable as set forth in Evidence Code section 1563(b). The records shall be accompanied by an affidavit of the custodian or other qualified witness pursuant to Evidence Code section 1561.
3. The records to be produced are described as follows (if electronically stored information is demanded, the form or Forms in which each type of information is to be produced may be specified):

RECORD SUBJECT: FRANCISCUS DYLAN ROSARIO

DOB: 06/06/1976 SSN: XXX-XX-0431

☒ Continued on Attachment 3

4. IF YOU HAVE BEEN SERVED WITH THIS SUBPOENA AS A CUSTODIAN OF CONSUMER OR EMPLOYEE RECORDS UNDER CODE OF CIVIL PROCEDURE SECTION 1985.3 OR 1985.6 AND A MOTION TO QUASH OR AN OBJECTION HAS BEEN SERVED ON YOU, A COURT ORDER OR AGREEMENT OF THE PARTIES, WITNESSES, AND CONSUMER OR EMPLOYEE AFFECTED MUST BE OBTAINED BEFORE YOU ARE REQUIRED TO PRODUCE CONSUMER OR EMPLOYEE RECORDS.

DISOBEDIENCE OF THIS SUBPOENA MAY BE PUNISHED AS CONTEMPT BY THIS COURT. YOU WILL ALSO BE LIABLE FOR THE SUM OF FIVE HUNDRED DOLLARS AND ALL DAMAGES RESULTING FROM YOUR FAILURE TO OBEY.

Date issued: 02/01/2024

ALBERTO REYNA
 (TYPE OR PRINT NAME)

/S/ ALBERTO REYNA
 (SIGNATURE OF PERSON ISSUING SUBPOENA)

ATTORNEY
 (TITLE)

PLAINTIFF/PETITIONER: FRANCISCUS DYLAN ROSARIO SUBHI ABDELHALIM INDIVIDUALLY, AND DBA DEFENDANT/RESPONDENT: SONOMA LIQUOR	CASE NUMBER: CGC-21-594102
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**PROOF OF SERVICE OF DEPOSITION SUBPOENA FOR
PRODUCTION OF BUSINESS RECORDS**

1. I served this *Deposition Subpoena for Production of Business Records* by to the person served as follows:

- a. Person served (name):
- b. Address where served:
850 Bryant Street, Suite 511, San Francisco, CA 94103
- c. Date of delivery:
- d. Time of delivery:
- e. (1) ☒ Witness fees were paid.
Amount: _____ \$ 15.00
- (2) ☐ Copying fees were paid.
Amount: _____ \$ _____
- f. Fee for service: \$ _____

2. I received this subpoena for service on (date):

3. Person serving:

- a. ☐ Not a registered California process server.
- b. ☐ California sheriff or marshal.
- c. ☐ Registered California process server.
- d. ☐ Employee or independent contractor of a registered California process server.
- e. ☐ Exempt from registration under Business and Professions Code section 22350(b).
- f. ☒ Registered professional photocopier.
- g. ☐ Exempt from registration under Business and Professions Code section 22451.
- h. Name, address, telephone number, and, if applicable, county of registration and number:

Compex Legal Services, Inc.
325 Maple Avenue
Torrance, CA 90503

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

(For California sheriff or marshal use only)
I certify that the foregoing is true and correct.

Date:

Date:

▶ _____
(SIGNATURE)

▶ _____
(SIGNATURE)

ATTACHMENT 3

NAME: Franciscus Dylan Rosario
DOB: 6/6/1976
SSN: xxx-xx-0431

Scope: 01/01/2013 to Present

SAN FRANCISCO POLICE DEPARTMENT – RECORDS DIVISION,

Report No. 210079556

DOI: 02/04/2021

ANY AND ALL DOCUMENTS AND RECORDS STORED IN ANY FORMAT RELATED TO REPORT #210079556, THAT OCCURRED ON 02/04/2021 AT OR ABOUT 3:00 PM (0300) ON 5TH ST. AND TEHAMA ST. SAN FRANCISCO, CALIFORNIA INVOLVING DRIVER SUBHI ABDELHALIM AND OTHERS INCLUDING FRANCISCUS DYLAN ROSARIO, INCLUDING BUT NOT LIMITED TO THE ENTIRE HARD FILE, BOTH ELECTRONIC AND WRITTEN COMMUNICATIONS, NOTES, MEMORANDUMS, STATEMENTS, WITNESS INTERVIEWS, PHOTOGRAPHS, VIDEOS, RECORDINGS, 9-1-1 CALL, CALCULATIONS AND RAW DATA.

ANY AND ALL VIDEO RECORDINGS FROM ANY CALIFORNIA HIGHWAY PATROL OR SAN FRANCISCO POLICE OFFICER'S BODY-WORN CAMERA (BWC) RELATED TO THE EVENTS, CIRCUMSTANCES AND INVESTIGATION REGARDING INCIDENT AT OR ABOUT 02/04/2021 AT OR ABOUT 3:00 PM (0300) ON 5TH ST. AND TEHAMA ST. SAN FRANCISCO, CALIFORNIA AS IDENTIFIED IN REPORT #210079556

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EXHIBIT 6

Substitution of Attorney

Case No.: CGC-25-631801

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: CT 1

Case Information

CGC-21-594102

FRANCISCUS DYLAN ROSARIO VS. SUBHI ABDELHALIM ET AL (Unlimited)

Register of Actions

Date	Proceedings	Fee	
Jul-27-2021	PERSONAL INJURY/PROPERTY DAMAGE - VEHICLE RELATED, COMPLAINT (TRANSACTION ID # 66801024) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN AS TO DEFENDANT ABDELHALIM, SUBHI INDIVIDUALLY, AND DBA SONOMA LIQUOR DOES 1 TO 20 NO SUMMONS ISSUED, JUDICIAL COUNCIL CIVIL CASE COVER SHEET NOT FILED CASE MANAGEMENT CONFERENCE SCHEDULED FOR DEC-29-2021 PROOF OF SERVICE DUE ON SEP-27-2021 CASE MANAGEMENT STATEMENT DUE ON DEC-06-2021	450.00	e
Jul-27-2021	CIVIL CASE COVER SHEET (TRANSACTION ID # 66801024) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN		e
Jul-27-2021	NOTICE TO PLAINTIFF		d
Aug-24-2021	SUMMONS ISSUED (TRANSACTION ID # 66801024) TO PLAINTIFF ROSARIO, FRANCISCUS DYLAN		e
Sep-14-2021	ANSWER TO COMPLAINT (TRANSACTION ID # 100141588) FILED BY DEFENDANT ABDELHALIM, SUBHI	435.00	e
Sep-14-2021	JURY FEES (TRANSACTION ID # 100141588) DEPOSITED BY DEFENDANT ABDELHALIM, SUBHI	150.00	
Sep-16-2021	CASE MANAGEMENT STATEMENT (TRANSACTION ID # 100141850) FILED BY DEFENDANT ABDELHALIM, SUBHI JURY DEMANDED, ESTIMATED TIME FOR TRIAL: 5.0 DAYS		e
Nov-11-2021	REFUND FROM THE ELIMINATION OF LOCAL SURCHARGES (GC 70625) OF \$15.00		
Dec-15-2021	JURY FEES (TRANSACTION ID # 100149869) DEPOSITED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	150.00	
Dec-16-2021	ASSIGNED TO ARBITRATION FOR FEB-28-2022. THE DEC-29-2021 CASE MANAGEMENT CONFERENCE IS OFF CALENDAR. NOTICE SENT BY COURT.		d
Dec-20-2021	NOTICE OF OBJECTION TO ORDER TO ARBITRATION (TRANSACTION ID # 100150215) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN HEARING SET FOR DEC-29-2021 AT 10:30 AM IN DEPT 610		e
Dec-29-2021	OBJECTION HEARING HELD ON DEC-29-2021. JUDGE SAMUEL K. FENG; CLERK JULIE RUMSEY. NOT REPORTED (610)		
Dec-29-2021	REMOVED FROM ARBITRATION. CASE MANAGEMENT CONFERENCE SET FOR APR-20-2022 AT 10:30 AM IN DEPARTMENT 610. ARBITRATION DATE OF FEBRUARY 28, 2022 IS VACATED. NOTICE SENT BY COURT.		d
Apr-07-2022	CASE MANAGEMENT STATEMENT (TRANSACTION ID # 100160729) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN JURY DEMANDED, ESTIMATED TIME FOR TRIAL: 7.0 DAYS		e
Apr-08-2022	NOTICE OF TIME AND PLACE OF TRIAL, JURY TRIAL SET FOR DEC-19-2022 AT 9:30 AM IN DEPT. 206. CASE MANAGEMENT CONFERENCE ON APR-20-2022 IS OFF CALENDAR. NOTICE SENT BY COURT.		d
Apr-13-2022	DEFENDANTS TRIAL OBJECTION (TRANSACTION ID # 100161247) FILED BY DEFENDANT ABDELHALIM, SUBHI HEARING SET FOR APR-20-2022 AT 10:30 AM IN DEPT 610		e
Apr-13-2022	PLAINTIFFS NOTICE OF OBJECTION TO TRIAL DATE (TRANSACTION ID #		e

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EXHIBIT 7

Minute Orders

Case No.: CGC-25-631801

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: Court Record

Case Information

CGC-21-594102

FRANCISCUS DYLAN ROSARIO VS. SUBHI ABDELHALIM ET AL (Unlimited)

Register of Actions

Date	Proceedings	Fee
Apr-08-2025	ROSARIO, FRANCISCUS DYLAN MOTION FOR JUDGMENT ON THE PLEADINGS (TRANSACTION ID # 76018066) FILED BY PLAINTIFF	IFP e
Apr-09-2025	ROSARIO, FRANCISCUS DYLAN TRIAL BRIEF (TRANSACTION ID # 76039464) FILED BY PLAINTIFF	e
Apr-09-2025	ROSARIO, FRANCISCUS DYLAN MOTION FOR RECONSIDERATION OF RULING ON DEFENDANT'S MOTION IN LIMINE NO. 8 (TRANSACTION ID # 76039629) FILED BY PLAINTIFF	IFP e
Apr-09-2025	ROSARIO, FRANCISCUS DYLAN REQUEST FOR JUDICIAL NOTICE PART 2 (TRANSACTION ID # 76039710) FILED BY PLAINTIFF	e
Apr-09-2025	ROSARIO, FRANCISCUS DYLAN THIRD REQUEST SUPPLEMENTAL JUDICIAL NOTICE FOR CLARIFICATION AND OBIOUSNESS PURSUANT TO EVIDENCE CODE 452(G) AND (H) (TRANSACTION ID # 76039710) FILED BY PLAINTIFF	e
Apr-10-2025	ROSARIO, FRANCISCUS DYLAN TRIAL BRIEF JURY ARGUMENT NOTES - EXPERT CHALLENGE ? DR. TERENCE DELANEY, ORTHOPEDIC SURGEON (TRANSACTION ID # 76039740) FILED BY PLAINTIFF	e
Apr-10-2025	ROSARIO, FRANCISCUS DYLAN MINUTES FOR APR-10-2025 9:30 AM	d
Apr-10-2025	ORDER 1) DENYING "PLAINTIFF'S PEREMPTORY CHALLENGE TO JUDICIAL ASSIGNMENT PURSUANT TO CCP 170.6;" 2) DENYING 'PLAINTIFF'S MOTION FOR RECONSIDERATION AND REMINDER OT THE COURT REGARDING MANDATORY PROVISIONS OF CCP 170.6;" 3) STRIKING "PLAINTIFF DECLARATION AND MEMORANDUM OF JUDICIAL BIAS AND PROCEDURAL ABUSE SUPPORTING MISTRIAL PURSUANT TO CCP 657 AND JUDICIAL DISQUALIFICATION UNDER CCP 170.1;" 4) STRIKING "OPPOSITION TO GARRET [SIC] WONG DENIAL OF MOTION AND MOTION FOR RECONSIDERATION TO DEMAND RECUSAL JUDGE UNDER CCP 170.1;" 5) STRIKING "PLAINITFF FRANCISCUS DYLAN ROSARIO VERIFIED DECLARATION OF IN SUPPORT OF STATEMENT OF DISQUALIFICATION UNDER CCP 170.1(A) (6) (A) (III) ;" 6) STRIKING 'PLAINTIFF'S VERIFIED STATEMENT OF DISQUALIFICATION OF JUDGE GARRET [SIC] L. WONG PURSUANT TO CCP 170.1(A) (6) (A) (III) ;" IN THE ALTERNATIVE, VERIFIED ANSWER OF JUDGE GARRETT L. WONG. [TRANSACTION# 76047901]	d
Apr-10-2025	JURY TRIAL SET FOR APR-10-2025 CONTINUED TO APR-14-2025 AT 9:30 AM IN 504 FOR PRETRIAL MOTIONS & JURY HARDSHIPS. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, REPORTER: D. SOUZA CSR#3893 209-629-1921; DMSOUZA@GMAIL.COM, (504) .	
Apr-10-2025	ORDER ORDER DENYING DEFENDANT SUBHI ABDELHALIM'S MOTION IN LIMINE NO.2 TO PRECLUDE PLAINTIFF FROM OFFERING ANY TESTIMONY OR ARGUMENT THAT HIS ALLEGED INJURIES WERE CAUSE BY DEFENDANT.	d
Apr-10-2025	ORDER GRANTING DEFENDANT SUBHI ABDELHALIM'S MOTION IN LIMINE NO.3 TO PRECLUDE PLAINTIFF FROM OFFERING ANY TESTIMONY OR ARGUMENT AS TO FUTURE MEDICAL SPECIALS/EXPENSES	d
Apr-10-2025	ORDER GRANTING DEFENDANT SUBHI ABDELHALIM'S MOTION IN LIMINE NO.14 TO PRECLUDE PLAINTIFF FROM OFFERING ANY TESTIMONY OR ARGUMENT AS TO FUTURE MEDICAL TREATMENT	d
Apr-10-2025	ORDER GRANTING DEFENDANT SUBHI ABDELHALIM'S MOTION IN LIMINE NO.18 TO	d

Case Information

CGC-21-594102

FRANCISCUS DYLAN ROSARIO VS. SUBHI ABDELHALIM ET AL (Unlimited)

Register of Actions

Date	Proceedings	Fee
	PRECLUDE PLAINTIFF, OR ANYONE ON PLAINTIFF'S BEHALF, FROM TESTIFYING OR PRESENTING ARGUMENT AS TO FUTURE LOSS OF EARNING CAPACITY, FUTURE LOSS OF EARNINGS AND PAST LOSS OF EARNINGS	
Apr-14-2025	DECLARATION OF FRANCISCUS ROSARIO AS CUSTODIAN OF BUSINESS RECORDS PURSUANT TO CALIFORNIA EVIDENCE CODE 1271 (TRANSACTION ID # 76057980) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	e
Apr-14-2025	TRIAL MOTION TO ADMIT MEDICAL RECORDS AS BUSINESS RECORDS (EVIDENCE CODE 1271, 1560, 1561 (TRANSACTION ID # 76057980) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	e
Apr-14-2025	MOTION TO ADMIT BUSINESS RECORDS UNDER EVID. CODE 1271 (TRANSACTION ID # 76057980) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	IFP e
Apr-14-2025	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 76059449) FILED BY DEFENDANT ABDELHALIM, SUBHI	e
Apr-14-2025	DEFENDANT SUBHI ABDELHALIM'S RESPONSE TO PLAINTIFF'S REQUEST FOR JUDICIAL NOTICE AND CLARIFICATION OF LEGAL RIGHT TO PROVE DAMAGES AND CAUSATION THROUGH LAY TESTIMONY AND BUSINESS RECORDS WITHOUT EXPERT WITNESS? (TRANSACTION ID # 76059449) FILED BY DEFENDANT ABDELHALIM, SUBHI	e
Apr-14-2025	REQUEST FOR ADMONISHMENTS PURSUANT TO RULINGS ON MOTIONS IN LIMINE BEFORE JURY SELECTION (TRANSACTION ID # 76059449) FILED BY DEFENDANT ABDELHALIM, SUBHI	e
Apr-14-2025	ORDER EXCLUDING DR. RENE GONZALEZ'S TESTIMONY	d
Apr-14-2025	MINUTES FOR APR-14-2025 9:30 AM	d
Apr-14-2025	JURY TRIAL SET FOR APR-14-2025 CONTINUED TO APR-15-2025 AT 9:30 AM IN 504 FOR JURY SELECTION. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, REPORTER: D. SOUZA CSR#3893 209-629-1921; DMSOUZA@GMAIL.COM, (504).	
Apr-14-2025	MOTION TO BIFURCATE AND SUBMIT SPECIAL VERDICT ON CAUSATION PRIOR TO DAMAGES PHASE; - PROPOSED SPECIAL VERDICT FORM (CAUSATION AND FAULT ONLY); - 1-PAGE BENCH BRIEF (TRANSACTION ID # 76067216) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	IFP e
Apr-15-2025	MINUTES FOR APR-15-2025 9:30 AM	d
Apr-15-2025	JURY TRIAL SET FOR APR-15-2025 CONTINUED TO APR-16-2025 AT 9:00 AM IN 504 FOR OPENING STATEMENTS. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, REPORTER: D. SOUZA CSR#3893 209-629-1921; DMSOUZA@GMAIL.COM, (504).	
Apr-16-2025	PROOF OF SERVICE BY ELECTRONIC MAIL FOR PROPOSED ORDER (TRANSACTION ID # 76080996) FILED BY DEFENDANT ABDELHALIM, SUBHI	e
Apr-16-2025	MINUTES FOR APR-16-2025 9:00 AM	d
Apr-16-2025	JURY TRIAL SET FOR APR-16-2025 CONTINUED TO APR-17-2025 AT 9:30 AM IN 504 FOR PLAINTIFF'S CASE CONTINUED.	
Apr-17-2025	MINUTES FOR APR-17-2025 9:30 AM	d
Apr-17-2025	JURY TRIAL SET FOR APR-17-2025 CONTINUED TO APR-21-2025 AT 9:45 AM IN 504	
Apr-21-2025	JURY TRIAL SET FOR APR-21-2025 CONTINUED TO APR-22-2025 AT 9:30 AM IN 504 FOR JURY INSTRUCTIONS AND CLOSING ARGUMENTS.	
Apr-22-2025	EXHIBIT LIST FOR PLAINTIFF FILED	d

Note: Page numbers printed on embedded PDF images reflect the source filings. Citations in this filing use reporter, transcript, and clerk pagination for the master packet.

EXHIBIT 8

Notice of Appeal

Case No.: CGC-25-631801

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: Court Record

Source PDF not on disk for this exhibit.

Expected path may be added to the repository.

Notice of Appeal

EXHIBIT Decl-A

Exhibit A · deposition excerpts + CT Vol. 1 p. 66 (composite)

Case No.: CGC-25-631801

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Sept. 30, 2022 depo; CT

1 BE IT REMEMBERED that, pursuant to Notice of
2 Taking Deposition, and on Friday, September 30, 2022,
3 commencing at 10:01 a.m. thereof, before me, ANGIE M.
4 MATERAZZI, a Certified Shorthand Reporter, personally
5 appeared remotely

6 SUBHI ABDELHALIM

8 called as a witness by the Plaintiff, who, having been
9 first duly sworn, was examined and testified as follows:

10 - - 000 - -

11 THE REPORTER: Do all counsel stipulate to the
12 swearing in of the witness remotely?

13 MR. CHAMBERS: Yes.

14 MS. LEVY: Yes.

15 EXAMINATION BY MS. LEVY

16 Q. Good morning, sir. My name is Kim Levy. I
17 represent the plaintiff in this matter, Franciscus
18 Rosario. We are here today to talk about a collision
19 that happened on February 4th, 2021.

20 Do you recall that collision?

21 A. Yes.

22 Q. Could you please state --

23 A. When you say "recall," do you mean, do you
24 remember that collision, right?

25 Q. Yes. Yes. Correct.

1 **A. Yes.**

2 Q. Thank you for clarifying. So if I ask a
3 question that's confusing or that you don't understand,
4 please let me know, okay? I will rephrase the question
5 for you, all right?

6 **A. Yes.**

7 Q. All right. I'm just going to go over some
8 ground rules of how a deposition goes, to make things go
9 smoothly and help us out -- get done as quickly as
10 possible, okay?

11 **A. Okay.**

12 Q. So the first thing is, you've just taken an
13 oath to tell the truth. Your testimony here today is
14 under penalty of perjury. That's the same oath that you
15 would take if you were testifying in a court of law to
16 tell the truth.

17 Do you understand that?

18 **A. Yes.**

19 Q. Okay. You're doing a great job. In order to
20 get an accurate record, we want to make sure that you
21 wait until I'm finished talking, or your attorney is
22 finished talking, before you begin your answer, okay?
23 You're doing great so far and I'll try not to talk over
24 you, as well, okay?

25 **A. Okay.**

1 right?

2 **A. Correct.**

3 Q. From Jessie alley, on the date of the
4 collision, where -- where did you exit -- on what street
5 did you exit?

6 **A. You go -- alley is one way down from 6th. And**
7 **from there, you see the Mint building, which is -- you**
8 **know the Mint building, they used to make coin in?**

9 Q. Yes.

10 **A. You cannot go straight up. You have to turn**
11 **left and there's a stop sign on Mission. And after**
12 **that, you have to turn right on that alley to take**
13 **Mission.**

14 Q. Okay. And then once you're on Mission, where
15 did you go?

16 **A. From Mission, comes 5th Street.**

17 Q. Okay. So which direction were you traveling
18 on 5th Street before this collision?

19 **A. When I get to Mission, I have to turn left on**
20 **Mission, which is -- there's a light. I remember I have**
21 **to wait on light. And slowly I went to 5th and Mission,**
22 **south.**

23 **We find another street called Howard Street.**
24 **After Howard --**

25 Q. And from there, where did you go?

1 A. After I crossed Howard, which is -- I'm going
2 south right now. After I cross Howard, I attempt to
3 turn left on Tehama. It's street or alley. I just
4 can't call it.

5 Q. So you were turning left from -- right before
6 this collision happened, you were turning left from 5th
7 Street onto Tehama?

8 A. Yes. After I cross Howard -- which is another
9 street -- I go down a little bit farther and Tehama is
10 on my left. So I slowed down and very, very, very
11 slowly -- very slowly to go -- there's a lot of traffic,
12 so I turn down Tehama, on my left.

13 Before I turn down, everything was clear,
14 nobody on left, nobody on right, barely going 5 miles an
15 hour. So when I finished turning, I complete my turn,
16 completely. I don't hear anything bump into me or
17 impact my car or anything, but I heard some screaming.
18 I was going slowly. I heard some screaming. I look in
19 my mirror, both sides, left or right, and I see somebody
20 laying down on the sidewalk screaming.

21 I say, Be a good citizen, see what's going on.
22 So I stop and I pulled my vehicle on the right to the
23 street, so -- I don't want to block nobody's traffic.
24 And I get out of my car to see who is that laying down
25 and screaming. I went and I say, Are you okay, guy? He

1 didn't say anything. I say, I'm going to calling 911
2 for you. He didn't say nothing. I call 911 and I
3 describe what's going on and I waited until the police
4 come and the ambulance.

5 So, of course, they come and see the guy. And
6 after a while, I still -- I don't go nowhere. I still
7 waited. After that, the police come to me. You see
8 anything? I say what I told you right now. I heard
9 some screaming and I waited and I couldn't see and the
10 guy say -- don't say nothing, mumbling, whatever.

11 The police tell me -- he told me, Okay. The
12 police took -- was talking to the guy. And after --
13 suddenly came to me and I see them taking scene pictures
14 and talking. And he said, Hey, guy, you have a driver's
15 license and your information about you? I say, Yeah. I
16 say, Why? They say, The guy claim you hit him. I said,
17 Well, thank God -- thank God I'm a good citizen. I
18 don't -- I never left. Otherwise, I'd be blamed for
19 everything, even true or not true.

20 So I provided him with my information, my
21 driver's license, my insurance and everything. He took
22 pictures, photo for -- from my vehicle. And after that,
23 I waited. He come back and tell me, Sir, you have a
24 good day. You're good to go. And that's what happened.

25 Q. Okay. Thank you for all of that information.

**MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF MOTION TO
CONTINUE TRIAL**

I. INTRODUCTION

This is a personal injury case arising out of an alleged motor vehicle versus pedestrian incident which took place on February 4, 2021, at the intersection of 5th Street and Tehama Street in San Francisco. The incident involved Plaintiff FRANCISCUS DYLAN ROSARIO and Defendant SUBHI ABDELHALIM. Plaintiff claims personal injury as a result of the alleged collision. Plaintiff filed his complaint on July 27, 2021.

On July 27, 2021, Plaintiff filed his Complaint alleging causes of action against the Defendant for Motor Vehicle Negligence and General Negligence. On September 14, 2021, Defendant filed his Answer to Plaintiff's Complaint. Declaration of Alberto Reyna, hereinafter as "Reyna Decl.," ¶ 2. Defendant's present counsel associated as defense counsel on April 19, 2023. Reyna Decl., ¶ 3.

At the time of filing this Motion for an order for trial continuance, there have been two previous trial continuances and only one since defense counsel associated onto this case. Defendant seeks the instant continuance to afford the Parties the opportunity to continue necessary discovery including discovery into Plaintiff's significant claims for wage loss including loss of profits, loss of income, and loss of earning capacity; discovery into Plaintiff's work under contract developing certain computer software involving artificial intelligence which Plaintiff claims he lost due to an inability to work due to his alleged injuries; sufficient time to take the depositions of witnesses and medical treaters; and the opportunity for the Parties to participate in mediation in an attempt to come to a resolution without the need for trial. Counsel for the Parties have met and conferred and have agreed to continue this trial to allow for further discovery.

On July 17, 2023, Defendant's counsel served Plaintiff's counsel written discovery including Special Interrogatories Set Two and Request for Production of Documents Set Two. After multiple granted requests for extensions on the production date citing the need for more time to produce responses and responsive documentation, Plaintiff's finally provided their written responses and document production on September 29, 2023. Reyna Decl., ¶ 4.

After having reviewed Plaintiff's responses and document production, Defendant's counsel determined that various responses were insufficient pursuant to code and there were missing portions of

Note: Page numbers printed on embedded PDF images reflect the source filings. Citations in this filing use reporter, transcript, and clerk pagination for the master packet.

EXHIBIT Decl-B

Exhibit B · Substitution of Attorney (May 4, 2023)

Case No.: CGC-25-631801

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

CT Vol. 1 p. 17

Case Information

CGC-21-594102

FRANCISCUS DYLAN ROSARIO VS. SUBHI ABDELHALIM ET AL (Unlimited)

Register of Actions

Date	Proceedings	Fee	
Jul-27-2021	PERSONAL INJURY/PROPERTY DAMAGE - VEHICLE RELATED, COMPLAINT (TRANSACTION ID # 66801024) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN AS TO DEFENDANT ABDELHALIM, SUBHI INDIVIDUALLY, AND DBA SONOMA LIQUOR DOES 1 TO 20 NO SUMMONS ISSUED, JUDICIAL COUNCIL CIVIL CASE COVER SHEET NOT FILED CASE MANAGEMENT CONFERENCE SCHEDULED FOR DEC-29-2021 PROOF OF SERVICE DUE ON SEP-27-2021 CASE MANAGEMENT STATEMENT DUE ON DEC-06-2021	450.00	e
Jul-27-2021	CIVIL CASE COVER SHEET (TRANSACTION ID # 66801024) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN		e
Jul-27-2021	NOTICE TO PLAINTIFF		d
Aug-24-2021	SUMMONS ISSUED (TRANSACTION ID # 66801024) TO PLAINTIFF ROSARIO, FRANCISCUS DYLAN		e
Sep-14-2021	ANSWER TO COMPLAINT (TRANSACTION ID # 100141588) FILED BY DEFENDANT ABDELHALIM, SUBHI	435.00	e
Sep-14-2021	JURY FEES (TRANSACTION ID # 100141588) DEPOSITED BY DEFENDANT ABDELHALIM, SUBHI	150.00	
Sep-16-2021	CASE MANAGEMENT STATEMENT (TRANSACTION ID # 100141850) FILED BY DEFENDANT ABDELHALIM, SUBHI JURY DEMANDED, ESTIMATED TIME FOR TRIAL: 5.0 DAYS		e
Nov-11-2021	REFUND FROM THE ELIMINATION OF LOCAL SURCHARGES (GC 70625) OF \$15.00		
Dec-15-2021	JURY FEES (TRANSACTION ID # 100149869) DEPOSITED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	150.00	
Dec-16-2021	ASSIGNED TO ARBITRATION FOR FEB-28-2022. THE DEC-29-2021 CASE MANAGEMENT CONFERENCE IS OFF CALENDAR. NOTICE SENT BY COURT.		d
Dec-20-2021	NOTICE OF OBJECTION TO ORDER TO ARBITRATION (TRANSACTION ID # 100150215) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN HEARING SET FOR DEC-29-2021 AT 10:30 AM IN DEPT 610		e
Dec-29-2021	OBJECTION HEARING HELD ON DEC-29-2021. JUDGE SAMUEL K. FENG; CLERK JULIE RUMSEY. NOT REPORTED (610)		
Dec-29-2021	REMOVED FROM ARBITRATION. CASE MANAGEMENT CONFERENCE SET FOR APR-20-2022 AT 10:30 AM IN DEPARTMENT 610. ARBITRATION DATE OF FEBRUARY 28, 2022 IS VACATED. NOTICE SENT BY COURT.		d
Apr-07-2022	CASE MANAGEMENT STATEMENT (TRANSACTION ID # 100160729) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN JURY DEMANDED, ESTIMATED TIME FOR TRIAL: 7.0 DAYS		e
Apr-08-2022	NOTICE OF TIME AND PLACE OF TRIAL, JURY TRIAL SET FOR DEC-19-2022 AT 9:30 AM IN DEPT. 206. CASE MANAGEMENT CONFERENCE ON APR-20-2022 IS OFF CALENDAR. NOTICE SENT BY COURT.		d
Apr-13-2022	DEFENDANTS TRIAL OBJECTION (TRANSACTION ID # 100161247) FILED BY DEFENDANT ABDELHALIM, SUBHI HEARING SET FOR APR-20-2022 AT 10:30 AM IN DEPT 610		e
Apr-13-2022	PLAINTIFFS NOTICE OF OBJECTION TO TRIAL DATE (TRANSACTION ID #		e

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EXHIBIT Decl-C

Exhibit C · Feb. 18, 2025 hearing (concealment colloquy; Jessup; MIL Nos. 6 & 17)

Case No.: CGC-25-631801

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Hearing Tr.; CT

1 So can you tell me why they're here? I assume
2 they're Mr. Rosario's --

3 MR. JESSUP: Former counsel.

4 THE COURT: -- former counsel, and they're here
5 on the basis of some subpoena that you issued?

6 MR. ROSARIO: Yes, Your Honor. You had
7 mentioned that the providence of the 911 transcript CDs
8 that were not passed to the defense, that you wanted me
9 to prove to you where those were to be able to provide
10 those. We had 911 emergency services send those to you
11 and Dolan had a copy since 2021.

12 THE COURT: Okay.

13 MR. ROSARIO: So they are here to testify on
14 that and provide those documents.

15 THE COURT: All right.

16 Counsel, do you have the -- I think it's the
17 compact disc or recording that Mr. Rosario referenced?

18 MR. JESSUP: Your Honor, are you talking about
19 the -- well, there's a bunch of things. We have, and
20 was produced to defense counsel, body cam footage, about
21 five videos, as well as the 911 audio, as well as the
22 CAD log. In addition --

23 THE COURT: Okay. Sorry. I'm trying to take
24 this down.

25 A body cam and what else did you provide?

1 MR. JESSUP: The 911 audio calls.

2 THE COURT: What else?

3 MR. JESSUP: And the CAD report. The CAD,
4 C-A-D, report.

5 THE COURT: Right.

6 MR. JESSUP: Along with various other
7 documents.

8 THE COURT: Okay.

9 MR. JESSUP: In addition, Your Honor, these
10 documents were identified in discovery, and last
11 February -- I have a copy of the Compaq subpoena issued
12 by defense to San Francisco Police Department requesting
13 all of this data.

14 THE COURT: Defense issued a subpoena?

15 MR. JESSUP: Correct. Now -- sorry, Your
16 Honor.

17 THE COURT: Go ahead.

18 MR. JESSUP: Prior to current defense counsel's
19 involvement, there was other -- another firm involved on
20 behalf of the defense. All of that -- those items were
21 served on them in the production for discovery as well
22 at Mr. Rosario's deposition, in addition, utilized in
23 the deposition of defendants. Whether or not prior
24 counsel gave that to current counsel, I don't know.

25 THE COURT: Okay.

1 MR. JESSUP: Thank you.

2 THE COURT: All right. Ms. Navaratnasingham.

3 MS. NAVARATNASINGHAM: Yes, Your Honor.

4 So this is news to me. We didn't realize that
5 prior to handling counsel may have received it, and I
6 can't confirm whether that was produced. I take
7 counsel's word, of course, but we -- I can represent to
8 you that our office did not receive the 911 call until
9 the day of the MSC -- the day before the MSC and that
10 was an attachment link. There was no sort of ability to
11 verify whether that was accurate or not.

12 And we were not present -- our office was not
13 on the case when Mr. Rosario's deposition was taken
14 either.

15 THE COURT: I see. Okay.

16 I think there are certain copies of some
17 materials that have been submitted by Mr. Rosario. I
18 think we did get a copy of a reply from someone with the
19 custodian of records for -- it may have been the fire
20 department. Am I correct?

21 You issued a subpoena, Mr. Rosario, for some
22 documents, and they said they no longer have them. I
23 think that was the response.

24 MR. ROSARIO: We were concerned, Your Honor --

25 THE COURT: No. I'm just asking you whether --

1 MR. ROSARIO: There's more than that, Your
2 Honor.

3 THE COURT: Go ahead. Tell me what's more
4 here, but I'm just pointing that out.

5 MR. ROSARIO: Okay. We wanted to depose the
6 witness as well as depose some of the police officers
7 who were at the scene. I have not been able to be given
8 that chance since I took over the case, and there's
9 severe prejudice to me, because there's questions that
10 need to be asked of the police officers that were not
11 asked and that are relevant, absolutely relevant to the
12 police officer's body cam. There's a lack of
13 information that was not disclosed in there.

14 Those depositions are going to be absolutely
15 critical for me to move forward and be able to try this
16 case. I was denied that opportunity because the
17 information was completely concealed from me.

18 I never received any access to any of the
19 videos or 911 tapes before the moment they had sent me a
20 hyperlink to download it, and it took me quite a while,
21 Your Honor, to go through thousands of files, and they
22 were buried very deeply. And I didn't even know that
23 there was even 911 or body cam videos until they were
24 pulled up, and I believe it was in December, and we were
25 already like days away from the MSC conference, and I

1 Code of Civil Procedure § 187; *Lemar v. Boise Cascade, Inc.* (1980) 107 Cal.App.3d 1, 9-12) Also, the
2 Court has authority under Evidence Code §§ 350 and 352 to exclude any irrelevant or unduly prejudicial
3 evidence, and as gatekeeper, to determine the question of the admissibility of evidence outside the
4 presence of a jury. See Cal. Evid. Code § 402.

5 **II. MATTERS TO BE EXCLUDED FROM EVIDENCE AND THE JURY**

6 Defendant hereby moves this Court for the following order prohibiting Plaintiff FRANCISCUS
7 DYLAN ROSARIO *in pro per* (“Plaintiff”), Plaintiff’s witnesses, and any other parties and their agents,
8 representatives and witnesses from testifying on behalf of Plaintiff and from discussing, posing
9 questions regarding, introducing evidence regarding, or in any manner suggesting to the jury the
10 following matter, and that plaintiff *in pro per* be ordered to inform each of Plaintiff’s witnesses of the
11 Court’s Order *in Limine* outside the presence of the jury and before each witness testifies to the matters
12 discussed below.

13 **A. Trial Witnesses Who Have Not Yet Testified Shall Be Excluded From The**
14 **Courtroom**

15 Defendant requests that all witnesses (except Plaintiff’s and Defendant’s trial representative) be
16 excluded from the courtroom until the time for them to testify. *See* Cal. Evid. Code § 777 (Deering’s
17 2005).

18 **III. CONCLUSION**

19 For all the foregoing reasons, Defendant respectfully requests and moves to exclude the
20 aforementioned evidence.

21
22 Date: January 17, 2025

PHILLIPS, SPALLAS & ANGSTADT, LLP

23
24 

25 _____
26 Robert K. Phillips
27 Priya Navaratnasingham
28 Alberto Reyna
Attorneys for Defendant
SUBHI ABDELHALIM

Robert K. Phillips [SBN 135088]
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Attorneys for Defendant
SUBHI ABDELHALIM

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

01/17/2025
Clerk of the Court
BY: YOLANDA TABO
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN FRANCISCO – UNLIMITED JURISDICTION

FRANCISCUS DYLAN ROSARIO

Plaintiff,

v.

**SUBHI ABDELHALIM, INDIVIDUALLY,
AND DBA SONOMA LIQUOR, DOES 1 TO
50,**

Defendants.

Case No. CGC-21-594102

**DEFENDANT SUBHI ABDELHALIM'S
MOTION IN LIMINE NO. 6 TO EXCLUDE
RECORDED MATERIALS,
PHOTOGRAPHS, OR DOCUMENTS
OFFERED BY PLAINTIFF THAT WERE
NOT PRODUCED IN DISCOVERY**

Complaint Filed: July 27, 2021
Trial Date: January 27, 2025

**TO THE HONORABLE JUDGE OF THE SUPERIOR COURT, TO ALL PARTIES AND
TO THEIR ATTORNEYS OF RECORD:**

Defendant SUBHI ABDELHALIM (hereinafter “Defendant”) by and through his attorneys,
PHILLIPS, SPALLAS & ANGSTADT LLP, respectfully submits the following MOTION IN LIMINE
and Points and Authorities in Support Thereof:

**For ease of the Court’s reference, and to avoid redundancy, Defendant hereby refers the
Parties and the Court to the Global Statement of Facts and Declaration of Priya
Navaratnasingham which is filed in support of all Motions in Limine herewith.**

I. AUTHORITY FOR MOTIONS IN LIMINE

The purpose of Motions *in Limine* is to prevent reference to matters which should be excluded
from the jury’s hearing. Although a Motion *in Limine* is not specifically mentioned by any California
statute, it has long been accepted as part of the Court’s power to conduct trial in an orderly manner. (See

1 Code of Civil Procedure § 187; *Lemar v. Boise Cascade, Inc.* (1980) 107 Cal.App.3d 1, 9-12) Also, the
2 Court has authority under Evidence Code §§ 350 and 352 to exclude any irrelevant or unduly prejudicial
3 evidence, and as gatekeeper, to determine the question of the admissibility of evidence outside the
4 presence of a jury. See Cal. Evid. Code § 402.

5 **II. MATTERS TO BE EXCLUDED FROM EVIDENCE AND THE JURY**

6 Defendant hereby moves this Court for the following order prohibiting Plaintiff FRANCISCUS
7 DYLAN ROSARIO *in pro per* (“Plaintiff”), Plaintiff’s witnesses, and any other parties and their agents,
8 representatives and witnesses from testifying on behalf of Plaintiff and from discussing, posing
9 questions regarding, introducing evidence regarding, or in any manner suggesting to the jury the
10 following matter, and that plaintiff *in pro per* be ordered to inform each of Plaintiff’s witnesses of the
11 Court’s Order *in Limine* outside the presence of the jury and before each witness testifies to the matters
12 discussed below.

13 **A. Recorded Material, Photographs, Videos, Or Documents Offered by Plaintiff That**
14 **Were Not Produced In Discovery Should Be Excluded**

15 Defendant seeks an order that Plaintiff will not be allowed to utilize at trial any document or
16 other evidence he has failed to produce in discovery. This Order applies to every stage of trial.
17 Violations of this Order shall be grounds for such relief as the Court, in its discretion, deems proper, up
18 to and including the granting of a mistrial. This Order shall be made pursuant to the court’s holding in
19 *Deeter v. Angus* (1986) 179 Cal.App.3d 241.

20 If Plaintiff failed to produce documents in his possession which were requested, this clearly
21 would constitute a misuse of the discovery process. Code of Civil Procedure § 2023. Courts have found
22 that withheld evidence, including documents, is appropriately excluded because, among other reasons, it
23 “subjects the adversary to unfair surprise at trial.” *Deeter*, 179 Cal. App. 3d at 255. Further, this Court
24 has the authority to exclude at trial any and all evidence that Plaintiff has withheld from discovery.
25 *Thoren v. Johnston and Washer* (1972) 29 Cal.App.3d 270.

26 This motion is made pursuant to the aforementioned authorities cited above. Any attempt by
27 Plaintiff to introduce evidence not previously disclosed in discovery would be improper, highly
28 prejudicial, and fundamentally unjust. Such failure to produce documents and other evidence should

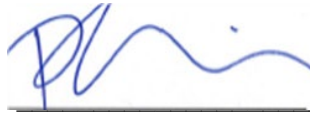
1 would be improper, highly prejudicial, and fundamentally unjust. Such failure to identify witnesses
2 should result in the exclusion of such witness.

3 **III. CONCLUSION**

4 Defendant respectfully requests that the Court exclude any witness testimony and to preclude
5 any witness from testifying at trial who Plaintiff has failed to identify in discovery.

6
7 Date: January 17, 2025

PHILLIPS, SPALLAS & ANGSTADT, LLP

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9 

10 _____
11 Robert K. Phillips
12 Priya Navaratnasingham
13 Alberto Reyna
14 Attorneys for Defendant
15 SUBHI ABDELHALIM
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Note: Page numbers printed on embedded PDF images reflect the source filings. Citations in this filing use reporter, transcript, and clerk pagination for the master packet.

EXHIBIT Decl-D

Exhibit D · Jan. 27, 2025 hearing (p. 19; suppression colloquy)

Case No.: CGC-25-631801

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Hearing Tr. Jan. 27, 2025, p. 19

1 We have two 911 records that the Defense has been trying to
2 suppress. And, I -- I can't -- I wouldn't be able to try the case
3 without the official 911 records from which the police report that
4 they're depending on was instigated. It doesn't provide
5 completeness, Your Honor.

6 THE COURT: Defense counsel?

7 MS. NAVARATNASINGHAM: Your Honor, the recordings, again,
8 completely lacks foundation; not authenticated. We have no idea
9 what they're -- Mr. Rosario is referring to. We have not heard
10 any recordings from our client.

11 This third-party witness that he says saw the accident, she
12 -- there is no identifying information on that whatsoever, and we
13 don't know where the recording came from. And, that's the subject
14 of our motion in limine. It's too late. We're on the first day
15 of trial here, and we're -- we oppose any continuance and would
16 like to proceed.

17 THE COURT: Okay. So, there's a couple of things going on
18 here. First of all, Mr. Rosario, the items that you seek to
19 retrieve are not available, apparently. Although you might have
20 submitted some kind of document which has been referred to as
21 computed aided dispatch, those are typically, from what I recall,
22 typed out shorthand of 911 calls; okay? So, that's one thing.

23 That would be in the course -- it would be a form of hearsay.
24 But, I would have to see the -- see whether or not that material
25 would be subject to a hearsay exception which would allow you to

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EXHIBIT Decl-E

Exhibit E · Feb. 18, 2025 hearing (reporter pp. 44-45; prejudice preservation)

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Hearing Tr. Feb. 18, 2025, pp. 44-45 (PDF pp. 179-180 in master hearing volume)

1 handle the matter procedurally. Correct?

2 Correct?

3 MR. ROSARIO: Those -- that last statement is
4 correct, Your Honor. The discovery of the -- of what my
5 attorney handed to me in August, the files, just like
6 President Joe Biden had a bunch of files when he was
7 president, or Donald Trump when he went home. He didn't
8 know there was stuff in the box and when he found it
9 months and months later, he then was aware of those
10 things. This is a common thing when somebody gets
11 something handed to them. That type of discovery, it
12 really changed the entire understanding of my case and
13 being press- -- pushed into this knowing that the judge
14 had said no more continuances.

15 What I believe would be fair, you know, is that
16 at least up to two to three weeks for me to be able to
17 prepare the proper information. I've been literally
18 running on -- like on a gerbil's cage trying to figure
19 out how to get this basic download done, let alone the
20 other pieces of information that I found when I got that
21 from my attorney, and that's obviously something I can
22 take up with my attorney in a separate matter.

23 The fact that they concealed those things from
24 me -- I mean, the fact that I wasn't even told that
25 there was eyewitnesses and confessions inside 911 calls

1 for four years, that's pretty disturbing. You can
2 imagine how you feel when you get to a trial, your
3 attorney dumps you if you don't take a settlement, and
4 instead you find, quite literally, a smoking gun like a
5 murder weapon.

6 So at this point right now I am going to
7 continue to state it, that I'm absolutely prejudiced.
8 This is going on the record. So when somebody finds,
9 quite literally, this type of information, they haven't
10 even been able to prepare a case about that, let alone
11 be able to get it together to be able to depose
12 people -- Your Honor, I found it literally days before
13 discovery closed. So yes, thank you very much for the
14 accommodations on the medical, but the foundation from
15 which somebody is surprised if they find murder weapons
16 or these types of things out of surprise, just like
17 Donald Trump said, Hey, I didn't know what's in those
18 boxes, you don't have the time to go through it.

19 THE COURT: Very well. Anything else?

20 MR. ROSARIO: Thank you, Your Honor. I
21 appreciate your consideration.

22 THE COURT: All right. Thank you.

23 Anything else?

24 MS. NAVARATNASINGHAM: No, Your Honor.

25 THE COURT: All right. The motion to continue

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